



PLUNDER

ECONOMIC CRIMES

BY: MARKBONIE R. BANIQUED

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GRAFT & CORRUPTION IN THE PHILIPPINES

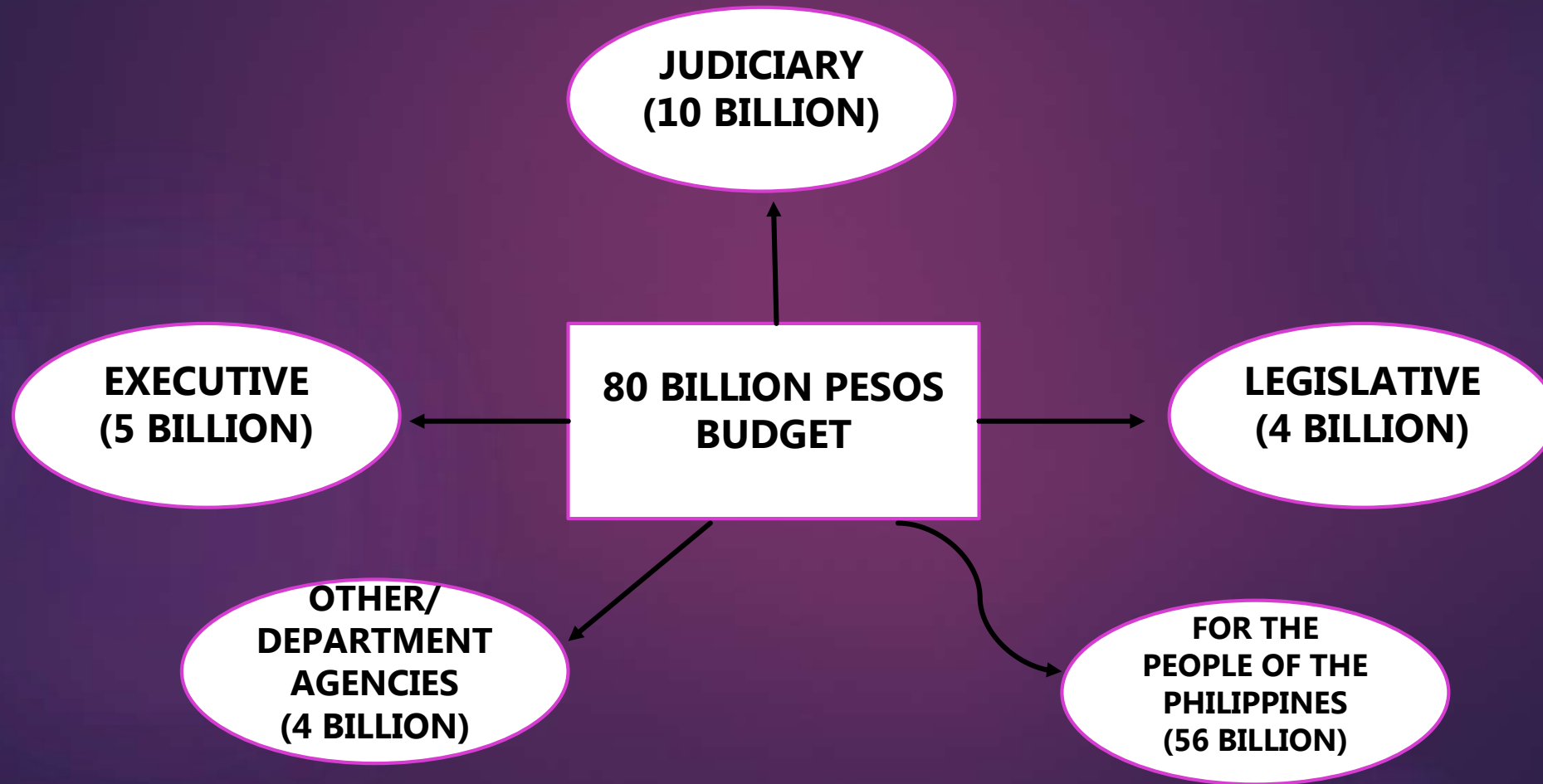
- ▶ IN 1988, GRAFT AND CORRUPTION IN THE PHILIPPINES WAS CONSIDERED AS THE **"BIGGEST PROBLEM OF ALL"** BY ARCHBISHOP OF MANILA JAIME CARDINAL SIN.
- ▶ IN 1989, PUBLIC PERCEPTION WAS THAT **"CORRUPT GOVERNMENT OFFICIALS ARE GREATER THREAT TO THE COUNTRY"** THAN THE COMMUNIST GUERILLAS.
- ▶ IN 1992, PRESIDENT FIDEL V. RAMOS CONSIDERED GRAFT AND CORRUPTION AS THE **THIRD MAJOR HINDRANCE TOWARDS ATTAINING HIS DEVELOPMENT STRATEGY FOR THE COUNTRY.**
- ▶ IN 1998, THE COUNTRY GOT GOOD MARKS FROM TRANSPARENCY INTERNATIONAL AND THE POLITICAL AND ECONOMIC RISK CONSULTANCY (PERC) LTD.

GRAFT & CORRUPTION IN THE PHILIPPINES

- ▶ THE PHILIPPINES THEN PLACED 6TH OUT OF 11 ASIAN COUNTRIES UNDER PERC CORRUPTION PERCEPTION INDEX (CPI), A MEASURE OF LOST DEVELOPMENT OPPORTUNITIES IN TERMS OF INVESTMENTS.
- ▶ HOWEVER, WHILE THE ANTI-CORRUPTION LANDSCAPE IN THE PHILIPPINES HAS IMPROVED, ITS LOW SCORE OF 6.5 STILL PLACED THE PHILIPPINES AS HIGHLY PRONE TO CORRUPTION.
- ▶ IN GENERAL, NATIONAL AND INTERNATIONAL OPINION DEPICT THE PHILIPPINES AS STILL CORRUPT AND BEING UNABLE TO EFFECTIVELY FIGHT THIS PROBLEM.
- ▶ ABOUT 30% OF THE NATIONAL BUDGET IS REPORTEDLY LOST TO GRAFT AND CORRUPTION EVERY YEAR.

► **THUS;**

A BUDGET OF 80 BILLION PESOS WILL STAND TO LOSE ABOUT 24 BILLION PESOS.



SPECIFIC TYPES OF CORRUPTION IN THE PHILIPPINES

► THERE ARE 8 TYPES OF CORRUPTION IN THE PHILIPPINES, NAMELY:

1. TAX EVASION
2. GHOST PROJECTS AND PAYROLLS
3. EVASION OF PUBLIC BIDDING IN AWARDING OF CONTRACTS
4. PASSING OF CONTRACTS
5. NEPOTISM AND FAVOURITISM
6. EXTORTION
7. PROTECTION MONEY
8. BRIBERY

TAX EVASION

- ▶ THIS IS VERY RAMPANT, PARTICULARLY IN THE PRIVATE SECTOR DUE TO TO THE REFUSAL OF THOSE ENGAGED IN PRIVATE BUSINESSES TO HONESTLY DECLARE THEIR ANNUAL INCOME AND PAY THE CORRESPONDING TAXES TO THE GOVERNMENT.

GHOST PROJECTS AND PAYROLLS

- ▶ THIS IS DONE BY HIGH OFFICIALS OF THE GOVERNMENT WHEREBY NON-EXISTING PROJECTS FINANCED BY THE GOVERNMENT WHILE NON-EXISTING PERSONNEL OR PENSIONERS ARE BEING PAID SALARIES AND ALLOWANCES. THIS PRACTICE IS RAMPANT IN GOVERNMENT AGENCIES INVOLVED IN FORMULATION AND IMPLEMENTATION OF PROGRAMS AND PROJECTS PARTICULARLY IN INFRASTRUCTURE AND IN THE OF GRANTING SALARIES, ALLOWANCES AND PENSION BENEFITS.

EVASION OF PUBLIC BIDDING IN THE AWARDING OF CONTRACTS

- ▶ GOVERNMENT OFFICES, PARTICULARLY BIDS AND AWARDS COMMITTEES (BAC) FOREGO THE AWARDING OF CONTRACTS THROUGH PUBLIC BIDDING OR AWARD THESE CONTRACTS TO FAVORED BUSINESS ENTERPRISES OR CONTRACTORS. SOMETIMES, MEMBERS OF BIDS AND AWARDS COMMITTEES ARE VERY SUBJECTIVE OF AWARDING THE CONTRACT TO THOSE WHO CAN PROVIDE THEM WITH PERSONAL BENEFITS.

PASSING OF CONTRACTS

- ▶ IN THE CONSTRUCTION OF INFRASTRUCTURE PROJECTS, CONTRACTORS HAVE THE PRACTICE OF PASSING THE WORK FROM ONE CONTRACTOR TO ANOTHER AND IN THE PROCESS CERTAIN PERCENTAGE OF THE PROJECT VALUE IS RETAINED BY EACH CONTRACTOR AND SUB-CONTRACTORS RESULTING TO THE USE OF SUBSTANDARD MATERIALS AND EVEN UNFINISHED PROJECTS.

NEPOTISM AND FAVORITISM

- ▶ GOVERNMENT OFFICIALS PARTICULARLY THOSE OCCUPYING HIGH POSITIONS TEND TO CAUSE THE APPOINTMENT OR EMPLOYMENT OF RELATIVES AND CLOSE FRIEND TO GOVERNMENT POSITIONS EVEN IF THEY ARE NOT QUALIFIED OR ELIGIBLE TO DISCHARGE THE FUNCTIONS OF THAT OFFICE. THIS IS ONE OF THE ROOT CAUSES OF INEFFICIENCY AND THE OVERFLOWING OF GOVERNMENT EMPLOYEES IN THE BUREAUCRACY.

EXTORTION

- ▶ THIS IS DONE BY THE GOVERNMENT OFFICIALS AGAINST THEIR CLIENTS BY DEMANDING MONEY, VALUABLE ITEMS, OR SERVICES FROM ORDINARY CITIZENS WHO TRANSACT BUSINESS WITH THEM OR THEIR OFFICE. THIS IS RAMPANT IN AGENCIES ISSUING CLEARANCES, AND OTHER DOCUMENTS, THOSE INVOLVED IN THE RECRUITMENT OF PERSONNEL, OR THOSE PERFORMING SERVICES THAT DIRECTLY FAVOR ORDINARY CITIZEN.

"TONG" OR PROTECTION MONEY

- ▶ THIS IS FORM OF BRIBERY WHICH IS DONE BY CITIZEN PERFORMING ILLEGAL ACTIVITIES AND OPERATION. THEY DELIVER HUGE AMOUNT OF MONEY TO GOVERNMENT OFFICIALS PARTICULARLY THOSE IN CHARGE OF ENFORCING THE LAW IN EXCHANGE FOR UNHAMPERED ILLEGAL OPERATION. THE LAW ENFORCEMENT OFFICER WHO RECEIVES THE MONEY WILL BE DUTY-BOUND TO PROTECT THE CITIZEN CONCERNED TOGETHER WITH HIS ILLEGAL ACTIVITIES FROM OTHER LAW ENFORCEMENT AUTHORITIES. THIS IS PRACTICES BY MOSTLY GAMBLING LORDS AND THOSE ENGAGED IN BUSINESS WITHOUT THE NECESSARY PERMITS.

"LAGAY" SYSTEM OR BRIBERY

- ▶ THE "LAGAY" SYSTEM OR THE ACT OF CITIZENS TO BRIBE GOVERNMENT OFFICIALS OCCUPYING SENSITIVE POSITIONS IN GOVERNMENT IS PERPETUATED DUE TO BUREAUCRATIC RED TAPE.
- ▶ THE MOST FREQUENTLY EMPLOYED METHOD IS OFFERING A CONSIDERABLE AMOUNT OF MONEY TO A GOVERNMENT OFFICIAL WHO CAN FACILITATE THE ISSUANCE OF DESIRED DOCUMENTS IN AGENCIES ISSUING LICENSES, PERMITS, CLEARANCES, AND THOSE AGENCIES DEPUTIZED TO MAKE DECISIONS ON PARTICULAR ISSUES.

THE PLUNDER LAW

- ▶ THE PLUNDER LAW WAS PASS IN JULY 12, 1991 WITH THE MOST SIGNIFICANT SIGNATORY BEING ONE SENATOR JOSEPH EJERCITO ESTRADA.

REPUBLIC ACT NO. 7080

AN ACT DEFINING AND PENALIZING THE CRIME OF PLUNDER

- ▶ "SECTION 2. DEFINITION OF CRIME OF PLUNDER.
- ▶ ANY PUBLIC OFFICER WHO, BY HIMSELF OR IN CONNIVANCE WITH MEMBERS OF HIS FAMILY, RELATIVES BY AFFINITY AND CONSAGUINITY, BUSINESS ASSOCIATES, SUBORDINATES OR OTHER PERSONS, AMASSES, ACCUMULATES OR ACQUIRES ILL-GOTTEN WEALTH THROUGH A **COMBINATION** OR **SERIES** OF OVERT OR CRIMINAL ACTS AGGREGATE IN THE AMOUNT OF **AT LEAST FIFTY MILLION PESOS (P50,000,000.00)**.

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- IN THE ORIGINAL VERSION OF RA7080, THE OFFENDER WAS LIABLE ONLY IF THE AGGREGATE AMOUNT AMASSED IS AT LEAST SEVENTY-FIVE MILLION PESOS (P75,000,000.00) WITH THE CORRESPONDING PENALTY OF LIFE IMPROSONMENT WITH PERPETUAL ABSOLUTE DISQUALIFICATION FROM HOLDING ANY PUBLIC OFFICE, HOWEVER, RA7659 (THE DEATH PENALTY LAW) AMENDED SECTON 2 OF RA7080 AND LOWERED THE AMOUNT TO FIFTY MILLION PESOS AND INCREASED THE IMPOSABLE PENALTY TO DEATH.

SECTION 5. SUSPENSION AND LOSS OF BENEFITS.

- ▶ — ANY PUBLIC OFFICER AGAINST WHOM ANY CRIMINAL PROSECUTION UNDER A VALID INFORMATION UNDER THIS ACT WHATEVER STAGE OF EXECUTION AND MODE OF PARTICIPATION, IS PENDING IN COURT, SHALL BE SUSPENDED FROM OFFICE. SHOULD HE BE CONVICTED BY FINAL JUDGMENT, HE SHALL LOSE ALL RETIREMENT OR GRATUITY BENEFITS UNDER ANY LAW, BUT IF HE IS ACQUITTED, HE SHALL BE ENTITLED TO REINSTATEMENT AND TO THE SALARIES AND OTHER BENEFITS WHICH HE FAILED TO RECEIVE DURING SUSPENSION, UNLESS IN THE MEANTIME, ADMINISTRATIVE PROCEEDINGS HAVE BEEN FILED AGAINST HIM.

WHAT IS ILL GOTTEN WEALTH?

- ▶ MEANS ANY ASSET, PROPERTY, BUSINESS ENTERPRISE, OR MATERIAL POSSESSION OF ANY PERSON WITHIN THE PURVIEW OF SECTION TWO (2) HEREOF, ACQUIRED BY HIM DIRECTLY OR INDIRECTLY THROUGH DUMMIES, NOMINEES, AGENTS, SUBORDINATES AND/OR BUSINESS ASSOCIATES BY ANY COMBINATION OR SERIES OF CRIMINAL ACTS.

CRIMINAL ACTS UNDER RA7080

- ▶ 1. MISAPPROPRIATION, CONVERSION, MISUSE, OR MALVERSATION OF PUBLIC FUNDS
- ▶ 2. RECEIVING ANY COMMISSION, GIFT, SHARE, PERCENTAGE, KICKBACKS OR ANY OTHER FORM OF PECUNIARY BENEFIT FROM ANY PERSON AND/OR ENTITY IN CONNECTION WITH ANY GOVERNMENT CONTRACT OR PROJECT

CRIMINAL ACTS UNDER RA7080

- ▶ 3. ILLEGAL OR FRAUDULENT CONVEYANCE OR DISPOSITION OF ASSETS BELONGING TO THE GOVERNMENT
- ▶ 4. OBTAINING, RECEIVING OR ACCEPTING ANY SHARES OF STOCK, EQUITY OR ANY OTHER FORM OF INTEREST OR PARTICIPATION INCLUDING THE PROMISE OF FUTURE EMPLOYMENT IN ANY BUSINESS ENTERPRISE OR UNDERTAKING

CRIMINAL ACTS UNDER RA7080

- ▶ 5. ESTABLISHING AGRICULTURAL, INDUSTRIAL OR COMMERCIAL MONOPOLIES OR OTHER COMBINATIONS AND/OR IMPLEMENTATION OF DECREES AND ORDERS INTENDED TO BENEFIT PARTICULAR PERSONS OR SPECIAL INTEREST.
- ▶ 6. TAKING UNDUE ADVANTAGE OF OFFICIAL POSITION, AUTHORITY, RELATIONSHIP, CONNECTION, OR INFLUENCE TO UNJUSTLY ENRICH HIMSELF OR THEMSELVES AT THE EXPENSE AND TO THE DAMAGE AND PREJUDICE OF THE COUNTRY AND ITS PEOPLE.

PENALTIES

- ▶ THE CRIME OF PLUNDER WAS PREVIOUSLY PUNISHABLE BY DEATH, BUT NOBODY AMONG THOSE CHARGED WITH PLUNDER IN THE COUNTRY'S HISTORY WERE HANDED DOWN THE DEATH SENTENCE.
- ▶ IN DECEMBER 1993, REPUBLIC ACT 7659 OR "**AN ACT TO IMPOSE THE DEATH PENALTY ON CERTAIN HEINOUS CRIMES**" AMENDED THE ANTI-PLUNDER LAW TO INCLUDE THE DEATH PENALTY AS A MAXIMUM PUNISHMENT TO THE COMMISSION OF PLUNDER.
- ▶ BUT AN ACCUSED CAN ESCAPE THE DEATH PENALTY IF THERE ARE NO AGGRAVATING CIRCUMSTANCES THAT WILL WARRANT ITS IMPOSITION.
- ▶ AFTER THE ABOLITION OF THE DEATH PENALTY IN 2006 THROUGH **REPUBLIC ACT 9346**, THE DEATH SENTENCE FOR PLUNDER WAS LIKEWISE STRUCK DOWN.

PENALTIES

▶ CURRENTLY, THE CRIME FOR PLUNDER ARE AS FOLLOWS,

1. RECLUSION PERPETUA
2. FORFEITURE OF ILL-GOTTEN WEALTH IN FAVOR OF THE GOVERNMENT;
3. PERPETUAL DISQUALIFICATION FROM PUBLIC OFFICE.

IS THERE A PRESCRIPTIVE PERIOD IN PROSECUTING SOMEONE WITH PLUNDER?

- ▶ THE CRIME PUNISHABLE UNDER RA7080 PRESCRIBES IN **TWENTY (20) YEARS**. HOWEVER, THE RIGHT OF THE STATE TO RECOVER PRPERTIES UNLAWFULLY ACQUIRED BY PUBLIC OFFICERS FROM THEM OR FROM THEIR NOMINEES OR TRANSFEREES SHALL NOT BE BARRED BY PRESCRIPTION, LACHES, OR ESTOPPEL.

HISTORIC PLUNDER CASE IN THE PHILIPPINES

- ▶ FROM THE ENACTMENT OF THE PLUNDER LAW IN 1991 UP TO 2016, THE ANTI-GRAFT COURT SANDIGANBAYAN HAS HANDLED ONLY 13 PLUNDER CASES.
- ▶ OF THESE, ONLY TWO (2) PEOPLE WERE CONVICTED: BUREAU OF INTERNAL REVENUE (BIR) CASHIER **DOMINGA MANALILI** AND **FORMER PRESIDENT JOSEPH ESTRADA**.
- ▶ MANALILI IS STILL SERVING HER SENTENCE: TWO TERMS OF *RECLUSION PERPETUA*. ESTRADA, WHO WAS SENTENCED WITH *RECLUSION PERPETUA*, WAS PARDONED BY HIS SUCCESSOR GLORIA MACAPAGAL ARROYO A MONTH AFTER HIS CONVICTION.

FIRST PLUNDER CASE

- ▶ THE FIRST-EVER PLUNDER CASES WERE FILED ON AUGUST 15, 1997, WHEN THEN-COMMISSIONER LIWAYWAY VINZONS-CHATO OF THE BUREAU OF INTERNAL REVENUE (BIR) SUED CASHIER DOMINGA MANALILI AND 6 OTHERS FOR TWO COUNTS OF PLUNDER.
- ▶ MANALILI AND HER ACCOMPLICES WERE ACCUSED OF DIVERTING A TOTAL OF P260 MILLION (OR AROUND \$9.9 MILLION AT THE TIME) OF WITHHOLDING TAX PAYMENTS OF GOVERNMENT AND PRIVATE EMPLOYEES TO UNAUTHORIZED BANK ACCOUNTS IN 1996.
- ▶ NEARLY 4 YEARS LATER, IN MAY 2001, MANALILI BECAME THE FIRST PERSON TO BE CONVICTED OF PLUNDER IN THE PHILIPPINES. SHE WAS SENTENCED BY QUEZON CITY REGIONAL TRIAL COURT JUDGE (NOW SUPREME COURT ASSOCIATE JUSTICE) DIOSDADO PERALTA TO TWO LIFE TERMS, AND WAS ORDERED TO RETURN THE MONEY SHE STOLE PLUS ALL PROFITS EARNED.
- ▶ HER ACCOMPLICES – FELLOW BIR OFFICIALS JOEL MARCELO AND GIL ERENCIO, AND TWO OTHER INDIVIDUALS – WERE ALSO FOUND GUILTY OF PLUNDER. MEANWHILE, CHARGES AGAINST TWO OTHER DEFENDANTS WERE DISMISSED DUE TO INSUFFICIENT EVIDENCE.



PAGBABA NG HATOL KAY ERAP:
MAGSISIMULA NA ANUMANG SANDALI

LONG HATOL
THE LEFTY-HANDY HOOKER CHASE

ERAP'S PLUNDER CASE

- ▶ ON APRIL 4, 2001, NEARLY 3 MONTHS AFTER HIS REMOVAL FROM OFFICE, FORMER PRESIDENT JOSEPH EJERCITO-ESTRADA, HIS SON JINGGOY ESTRADA AND 6 OTHERS, WERE CHARGED WITH PLUNDER.
- ▶ THE PHP4-BILLION PLUNDER CASE FILED AGAINST FORMER PRESIDENT JOSEPH EJERCITO-ESTRADA ALONG WITH JINGGOY ESTRADA AND SIX OTHERS IN 2001.
- ▶ ESTRADA WAS THE FIRST ELECTED OFFICIAL TO BE CHARGED WITH PLUNDER AND
- ▶ THE FORMER PRESIDENT WAS FILED FOR ALLEGEDLY AMASSING BILLIONS OF PESOS FROM JUETENG PAYOLA AND MISSAPPROPRIATION OF TOBACCO EXCISE TAX FUNDS.
- ▶ SIX YEARS LATER, ON SEPTEMBER 12, 2007, ESTRADA WAS FOUND GUILTY OF PLUNDER, AND SENTENCED TO LIFE IN PRISON. HIS SON JINGGOY AND LAWYER EDWARD SERAPIO WERE ACQUITTED.
- ▶ ON OCTOBER 26, 2007, HOWEVER, ERAP ESTRADA SECURED A PARDON FROM THEN-PRESIDENT GLORIA MACAPAGAL-ARROYO.

PENDING CASES

SANDIGANBAYAN
CENTENNIAL BUILDING



PCSO INTELLIGENCE FUND SCAM

AMOUNT
INVOLVED: **P365,997,915.00**

STATUS: **PENDING**, WITH 3
REMAINING DEFENDANTS

IN JULY 2012, FORMER PRESIDENT ARROYO FACED PLUNDER CHARGES ALONG WITH 7 PHILIPPINE CHARITY SWEEPSTAKES OFFICE (PCSO) OFFICIALS AND TWO COMMISSION ON AUDIT (COA) EXECUTIVES FOR THE ALLEGED MISUSE OF PCSO INTELLIGENCE FUNDS FROM 2008 TO 2010.

THE SUPREME COURT (SC) IN JULY 2016 ACQUITTED ARROYO AND PCSO BUDGET AND ACCOUNTS MANAGER BENIGNO AGUAS FOR LACK OF EVIDENCE. EARLIER, THE SANDIGANBAYAN HAD ALSO RELEASED 5 PCSO AND COA OFFICIALS. (TIMELINE: GLORIA ARROYO – FROM PLUNDER TO ACQUITTAL

THE CASE IS ONGOING AT THE SANDIGANBAYAN WITH 3 REMAINING DEFENDANTS: FORMER PCSO GENERAL MANAGER ROSARIO URIARTE, EX-PCSO DIRECTOR MA FATIMA VALDES, AND COA INTELLIGENCE FUND UNIT HEAD NILDA PLARAS.



GENERAL CARLOS GARCIA PLUNDER CASE

AMOUNT INVOLVED: **P303,272,006.00**

STATUS: PENDING

IN APRIL 2005, THE OMBUDSMAN FILED A PLUNDER CASE AGAINST EX-MILITARY COMPTROLLER AND RETIRED MAJOR GENERAL CARLOS F. GARCIA, HIS WIFE CLARITA, AND SONS IAN CARL, JUAN PAULO, AND TIMOTHY MARK. THEY ARE ACCUSED OF AMASSING OVER P300 MILLION IN REAL ESTATE PROPERTIES, SHARES OF STOCKS, CASH, AND OTHER ASSETS.

THE SANDIGANBAYAN IN MAY 2011 APPROVED A PLEA BARGAINING AGREEMENT WITH GARCIA, ALLOWING HIM TO PLEAD GUILTY TO LESSER OFFENSES OF DIRECT BRIBERY AND FACILITATING MONEY LAUNDERING.

HOWEVER, IN JULY 2013, THE SUPREME COURT ISSUED A TEMPORARY RESTRAINING ORDER ON THE PLEA BARGAIN DEAL. GARCIA IS CURRENTLY DETAINED AT THE NEW BILIBID PRISON.



3 PORK BARREL SCAM CASES VS. SENATORS

AMOUNTS INVOLVED:

**P224.51 MILLION (REVILLA),
P183.79 MILLION (ESTRADA),
P172.83 MILLION (ENRILE)**

STATUS: PENDING

IN JUNE 2014, 3 SENATORS WERE CHARGED WITH PLUNDER FOR THEIR REPORTED INVOLVEMENT IN THE 2013 PORK BARREL SCAM, AN ELABORATE SCHEME WHERE PUBLIC FUNDS FOR SUPPOSED GOVERNMENT PROJECTS WERE DIVERTED AND POCKETED

A PLUNDER CASE WAS FILED AGAINST THEN SENATOR RAMON "BONG" REVILLA JR, HIS STAFF RICHARD CAMBE, ALLEGED SCAM MASTERMIND JANET LIM NAPOLES, HER BROTHER RONALD JOHN LIM, AND HER EMPLOYEE JOHN RAYMUND DE ASIS.

ANOTHER WAS FILED AGAINST THEN SENATOR JINGGOY ESTRADA, HIS STAFF PAULINE LABAYEN, NAPOLES, AND DE ASIS

THE 3RD CASE WAS FILED AGAINST SENATOR JUAN PONCE ENRILE, CHIEF OF STAFF JESSICA LUCILA "GIGI" REYES, NAPOLES, LIM AND DE ASIS.

AMONG THE SENATORS, ONLY ENRILE AND JINGGOY ESTRADA POSTED BAIL.



2 PORK BARREL SCAM CASES VS. CONGRESSMEN

AMOUNTS INVOLVED: **P112.29 MILLION (LANETE), P95 MILLION (VALDEZ)**

STATUS: PENDING

IN FEBRUARY 2015, THE OFFICE OF THE OMBUDSMAN FILED PLUNDER CASES AT THE SANDIGANBAYAN AGAINST FORMER MASBATE REPRESENTATIVE RIZALINA SEACHON-LANETE AND FORMER APEC PARTY LIST REPRESENTATIVE EDGAR VALDEZ IN CONNECTION WITH THE PORK BARREL SCAM.

JANET LIM NAPOLES AND HER DRIVER JOHN RAYMUND DE ASIS ARE NAMED CO-ACCUSED IN BOTH CASES.

HOWEVER, BOTH LANETE AND VALDEZ ARE OUT ON BAIL, AFTER THE SANDIGANBAYAN GRANTED THEIR PETITIONS IN APRIL 2016.

DISPOSED CASES



ERAP ESTRADA PLUNDER CASE

AMOUNT INVOLVED: P4,097,804,173.00

DECISION: PRESIDENT ESTRADA WAS CONVICTED, SON JINGGOY ACQUITTED. ONE PLEADED GUILTY, 5 REMAIN AT LARGE.



FERTILIZER FUND SCAM AMOUNT

INVOLVED: P265,642,930.50

DECISION: CASE DISMISSED

IN JULY 2011, 3 OFFICIALS OF THE DEPARTMENT OF AGRICULTURE (DA) WERE CHARGED WITH PLUNDER FOR REPORTEDLY GETTING KICKBACKS FROM THE P723 MILLION IN FERTILIZER FUNDS MEANT FOR FARMERS UNDER THE DEPARTMENT'S GININTUANG MASAGANANG ANI PROGRAM.

FORMER AGRICULTURE UNDERSECRETARY JOCELYN "JOC-JOC" BOLANTE, FORMER SECRETARY LUIS RAMON "CHITO" LORENZO JR, EX-ASSISTANT SECRETARY IBARRA POLIQUIT, AND 6 PRIVATE DEFENDANTS WERE ACCUSED OF THE CRIME. ONE OF THE DEFENDANTS LATER BECAME A STATE WITNESS.

IN DECEMBER 2016, THE SANDIGANBAYAN DISMISSED THE CASE AFTER AFFIRMING ITS INITIAL FINDING 2 YEARS AGO THAT THERE WAS NO EVIDENCE AGAINST THE ACCUSED.



2 TAX PAYMENTS DIVERSION CASES

TOTAL AMOUNT
INVOLVED: P260,315,481.60
DECISION: TRANSFERRED TO A
QUEZON CITY TRIAL COURT, WHICH
FOUND 5 PEOPLE GUILTY

BUREAU OF INTERNAL REVENUE (BIR) CASHIER DOMINGA MANALILI AND 6 ACCOMPLICES FACED TWO PLUNDER CHARGES IN AUGUST 1997 FOR DIVERTING TAX PAYMENTS OF GOVERNMENT AND PRIVATE EMPLOYEES TO UNAUTHORIZED BANK ACCOUNTS IN 1996. THIS WAS THE FIRST PLUNDER CASE FILED BEFORE THE SANDIGANBAYAN.

INVESTIGATORS SAID THE BANK ACCOUNTS WERE "ALMOST DEPLETED" WHEN THEY DISCOVERED THEM IN LATE 1996. IN NOVEMBER 1999, THE SANDIGANBAYAN TRANSFERRED THE CASE TO A TRIAL COURT, WHICH HAD PROPER JURISDICTION OVER THE CASE.

ON MAY 4, 2001, QUEZON CITY REGIONAL TRIAL COURT BRANCH 95 JUDGE DIOSDADO PERALTA (NOW A SUPREME COURT ASSOCIATE JUSTICE) FOUND MANALILI GUILTY OF PLUNDER, SENTENCED HER TO TWO TERMS OF RECLUSION PERPETUA, AND ORDERED HER TO RETURN THE STOLEN MONEY PLUS PROFITS. FOUR OF HER CO-ACCUSED WERE ALSO GUILTY BUT REMAIN AT LARGE, WHILE TWO ACCOMPLICES WERE CLEARED OF THE CHARGES.

PERALTA RULED THAT MANALILI WOULD NOT FACE THE DEATH PENALTY "BECAUSE THERE WERE NO AGGRAVATING CIRCUMSTANCES."



FAKE VEHICLE REPAIRS CASE

AMOUNT INVOLVED: P82,321,855.38

DECISION: CASE DISMISSED, BUT MANY DEFENDANTS FACED MULTIPLE GRAFT AND ESTAFA CHARGES

"GHOST" OR FICTITIOUS REPAIRS OF DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS (DPWH) VEHICLES LED TO THE FILING OF A PLUNDER CASE IN MARCH 2004. THE CASE INVOLVED 20 DPWH OFFICIALS AND 10 SPARE PARTS SUPPLIERS.

AN INVESTIGATION REVEALED THAT OVER 500 VEHICLES WERE SUPPOSEDLY "REPAIRED" IN JUST A SPAN OF 10 MONTHS, FROM MARCH TO DECEMBER 2001.

HOWEVER, THE SANDIGANBAYAN DISMISSED THE CASE IN JANUARY 2005 "FOR LACK OF PROBABLE CAUSE FOR THE CRIME OF PLUNDER WITHOUT PREJUDICE TO THE FILING OF APPROPRIATE CHARGES AGAINST THE ACCUSED-RESPONDENTS."

GRAFT AND ESTAFA CHARGES WERE LATER FILED AGAINST NEARLY ALL OF THE RESPONDENTS – WITH 6 PEOPLE SUED FOR OVER 100 COUNTS OF EACH CRIME – STARTING IN 2013. SINCE NOVEMBER 2016, THE SANDIGANBAYAN HAS PROMULGATED AT LEAST 3 DECISIONS, CONVICTING 10 TO 11 OF THE DEFENDANTS OF GRAFT AND ESTAFA.



TAX CREDIT CERTIFICATES SCAM AMOUNT INVOLVED: P73,762,618

DECISION: CASE DISMISSED, BUT MANY DEFENDANTS FACED MULTIPLE GRAFT AND ESTAFA CHARGES

IN MARCH 2009, A PLUNDER CASE WAS FILED AGAINST DEPARTMENT OF FINANCE (DOF) OFFICIALS WHO WERE INVOLVED IN THE ILLEGAL ISSUANCE OF TAX CREDIT CERTIFICATES TO AN UNQUALIFIED FIRM BETWEEN 1994 AND 1996.

THE CASE WAS AGAINST DOF UNDERSECRETARY ANTONIO BELICENA, DEPUTY EXECUTIVE DIRECTOR ULDARICO ANDUTAN OF THE DOF-ONE STOP SHOP INTER-AGENCY TAX CREDIT AND DUTY DRAWBACK CENTER, TWO OTHER FINANCE EMPLOYEES, AND 4 EXECUTIVES OF FILSTAR TEXTILE INDUSTRIAL CORPORATION.

IN MARCH 2011, THE SANDIGANBAYAN DISMISSED THE CASE FOR LACK OF PROBABLE CAUSE. BUT IN RECENT YEARS, THE ANTI-GRAFT COURT MADE RULINGS IN SEPARATE BUT RELATED GRAFT AND ESTAFA CASES AGAINST SOME OF THESE RESPONDENTS, AS WELL AS OFFICIALS OF OTHER UNQUALIFIED COMPANIES.

FOR INSTANCE, THE SANDIGANBAYAN FOUND ANDUTAN AND 5 OTHERS GUILTY OF MULTIPLE COUNTS OF GRAFT IN JUNE 2016. BUT IT REVERSED ITS DECISION IN JANUARY 2017 AMID NEW EVIDENCE THAT PROVED CRUCIAL TO THAT CASE.



"That's all Folks!"